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Case Number: 24STCV24562 Hearing Date: September 21, 2026 Dept: 11

Preliminary Approval of Class Action

Settlement

Department SSC-11

Cynthia Vanegas v. Adept Fasteners, Inc.

Case

Number: 24STCV24562

Hearing Date: September

21, 2026

TENTATIVE RULING

GRANT preliminary approval contingent on the parties
addressing the following:

1. See Settlement Agreement ¶5.2. Modify the
release of class claims to specify that Class Members will only release claims
alleged in, or arising out of facts asserted in, the operative First Amended
Complaint, rather than “the Action.”

a. Similarly, at ¶5.3, modify the PAGA release
to specify that Aggrieved Employees release claims for PAGA civil penalties
that were alleged, or reasonably could have been alleged, based on the facts
alleged the operative First Amended Complaint (rather than the Action) and in
Plaintiff’s November 6, 2024 PAGA Notice.

b. Ensure the notice is revised to match.

2. At Notice p. 4, section III.2.A, fix the typo in the litigation expenses amount – it currently says “\$25,00.00.” Also, at III.2.D, fix the typo in the PAGA penalty amount – it says “\$6,5000.00”

BACKGROUND

This is a wage and hour class action. Plaintiff Cynthia Vanegas sues Defendant Adept Fasteners, Inc. and seeks to represent a class of Defendant's current and former non-exempt employees.

On September 23, 2024, Plaintiff filed this putative class action against Defendant alleging: (1) failure to pay minimum and straight time wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to authorize and permit rest periods; (5) failure to timely pay final wages at termination; (6) failure to provide accurate itemized wage statements; (7) failure to indemnify employees for expenditures; (8) failure to produce requested employment records; and (9) unfair business practices (“Class Action”).

On November 6, 2024, Plaintiff provided written notice to the LWDA and Defendant of the specific provisions the Labor Code alleged to have been violated. On January 10, 2025, Plaintiff filed a First Amended Complaint in this Class Action adding a cause of action for civil penalties under PAGA.

On July 7, 2025, the Parties participated in a private full-day mediation with mediator, the Hon. Amy Hogue (Ret.), which ultimately resulted in settlement. Terms were finalized in the long-form Class Action and PAGA Settlement Agreement (“Settlement Agreement”), attached as Exhibit 2 to the Declaration of John G. Yslas (“Yslas Decl.”).

Now before the Court is the Motion for Preliminary Approval of the Settlement.

SETTLEMENT CLASS DEFINITION

“Class”

means all current and former employees employed by Defendant in the State of California during the Class Period who do not opt out of the Settlement. (¶1.5)

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“Class

Period” means September 23, 2020, through September 5, 2025. (¶1.13)

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“Aggrieved

Employees” mean all current and former non-exempt employees employed by Defendant in the State of California at any time during the PAGA Period. No employee may opt out of being an Aggrieved Employee. (¶1.4)

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“PAGA

Period” means the period from November 6, 2023, through September 5, 2025. (¶1.35)

TERMS OF SETTLEMENT AGREEMENT

The essential

terms are as follows:

.

The

Gross Settlement Amount (“GSA”) is \$285,000, non-reversionary. (¶3.1)

o Escalator Clause: As of July 7, 2025,

Defendant calculated that from September 23, 2020, to that date, there were approximately 245 Class Members who worked approximately 30,185 workweeks during the Class Period. However, as previously agreed by the parties, should the total number of workweeks exceed 33,203 (which is 10% more than Defendant’s previous representation of 30,185), then the Gross Settlement Amount shall increase by \$9.44 (GSA divided by 30,185) for each additional workweek above 33,203. Alternatively, Defendant may elect, in its sole discretion, to shorten the time period governing the Class Period such that the total number of workweeks does not exceed 33,203, in lieu of increasing the Gross Settlement Amount. If Defendant elects to shorten the Class Period to the date the Workweeks reaches 33,203, the PAGA Period shall end on the same date. Defendant shall determine whether it will elect to shorten the time period prior to

preliminary approval. If the GSA is increased, the Parties agree that Class Counsels' attorneys' fees shall also increase proportionally to remain one-third of the GSA. (¶8)

o At preliminary approval, the settlement administrator represents that the Class List is comprised of 253 individuals who worked a total of 30,770.14 Workweeks. The escalator clause was therefore not triggered. (Declaration of Norma Ayala, ¶5.)

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The

Net Settlement Amount ("Net") (\$144,750) is the GSA minus the following:

o Up to \$95,000 (33 1/3%) for attorney fees (¶3.2.2)

o Up to \$25,000 for litigation costs (Ibid.);

o Up to \$7,500 for a Service Payment to the Named Plaintiff (¶3.2.1);

o Up to \$6,250 for settlement administration costs (¶3.2.3);

o Payment of \$6,500 PAGA penalty (65% or \$4,225 to the LWDA). (¶3.2.5)

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Defendant

will separately pay employer payroll taxes owed on the wage portions of the Individual Class Payments. (¶3.1)

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There

is no claim form requirement. (Notice, p. 2)

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Participating

Class Member Payments: Each

Participating Class Member will receive an Individual Class Payment calculated

as follows: (a) dividing the Net Settlement Amount allocated to the Class by the total number of Class Period Workweeks worked by all Participating Class Members during the Class Period and (b) multiplying the result by each Participating Class Members Class Period Workweeks. (§13.2.4)

o

Non-Participating

Class Members will not receive any Individual Class Payments. The Administrator will retain amounts equal to their Individual Class Payments in the Net Settlement Amount for distribution to Participating Class Members on a pro rata basis. (§13.2.4.2)

o Tax Allocation: 10% as wages; 90% as interest and penalties.

(§13.2.4.1)

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PAGA

Payments: The Administrator will calculate each Individual PAGA Payment by (a) dividing the amount of the Aggrieved Employees' 35% share of PAGA Penalties of \$2,275.00 by the total number of PAGA Period Pay Periods worked by all Aggrieved Employees during the PAGA Period and (b) multiplying the result by each Aggrieved Employee's PAGA Period Pay Periods. (§13.2.5.1)

o Tax Allocation: The Administrator will report the Individual PAGA Payments on IRS 1099 Forms. (§13.2.5.2)

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"Response

Deadline" means 45 days after the Administrator mails Notice to Class Members and Aggrieved Employees, and will be the last date on which Class Members may: (a) fax, email, or mail Requests for Exclusion from the Settlement, or (b) fax, email, or mail his or her Objection to the Settlement. Class Members to whom Notice Packets are resent after having been returned undeliverable to the Administrator will have an additional 14 calendar days beyond the date the Response Deadline has expired. The timeliness of submitted Request for Exclusion Forms will be determined by valid postmark. (§11.44) The same deadline applies to workweek challenges.

(§17.6)

o If the number of valid Requests for Exclusion

identified in the Exclusion List exceeds 10% of the total of all Class Members, Defendant may, but is not obligated, elect to withdraw from the Settlement. (¶19)

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Funding

of Settlement: Defendant will fully fund the Gross Settlement Amount by transmitting the funds to the Administrator no later than thirty (30) days after the Effective Date. (¶14.3)

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Disbursement

of GSA: Within fourteen (14) days after Defendant funds the Gross Settlement Amount, the Administrator will mail checks for all Individual Class Payments, all Individual PAGA Payments, the LWDA PAGA Payment, the Administration Expenses Payment, the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class Representative Service Payment. Disbursement of the Class Counsel Fees Payment, the Class Counsel Litigation Expenses Payment, and the Class representative Service Payment will not precede disbursement of Individual Class Payments and Individual PAGA Payments. (¶14.4)

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Uncashed Settlement Checks: The face of each check will prominently state the date (not less than 180 days after the date of mailing) when the check will be voided, which will be 180 days (hereinafter "Void Date"). (¶14.4.1) For any Class Member whose Individual Class Payment check or Individual PAGA Payment check is uncashed and cancelled after the Void Date, the Administrator will transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member thereby leaving no "unpaid residue" subject to the requirements of California Code of Civil Procedure Section 384, subd. (b). (¶14.4.3)

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The

settlement administrator will be Apex Class Action Administration. (¶1.2)

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Counsel

submitted the proposed settlement agreement to the LWDA on February 10, 2026. (Exhibit 4 to Yslas Decl.)

The
named Plaintiff and class members will release certain claims against
Defendant. (See further discussion
below).

ANALYSIS OF SETTLEMENT AGREEMENT

· Does a presumption of fairness exist?

1.

Was

the settlement reached through arm's-length bargaining? On July 7, 2025, the Parties participated in
a private full-day mediation with mediator, the Hon. Amy Hogue (Ret.). The
Parties accepted a mediator's proposal and agreed upon general settlement
terms. The Parties memorialized their agreement in a Memorandum of
Understanding on July 30, 2025. (Yslas Decl., ¶6.) The Parties negotiated the
terms of the Settlement over the next few months, which was finalized in
January 2026. (Id. at ¶7.)

2.

Were

investigation and discovery sufficient to allow counsel and the court to act
intelligently? Class

Counsel represents that prior to mediation, they assessed the value to the
class claims using the data and documents Defendant produced in informal
discovery. The data and documents produced by Defendant included the number of
Class Members and Aggrieved Employees, the number of workweeks in the Class
Period, and the number of pay periods in the PAGA Period, the average rate of
pay, documents concerning Plaintiff, Defendant's written wage-and-hour
policies, and a random sampling of Class Members' time and payroll records.
Plaintiff's Counsel engaged an expert to quantify the potential exposure using
the time and payroll records. (Id. at ¶9.)

3.

Is counsel

experienced in similar litigation? Yes. Class Counsel is experienced in class
action litigation, including wage and hour class action cases. (Id. at ¶¶22-35.)

4.

What

percentage of the class has objected? This cannot be determined until the fairness hearing. See Weil & Brown, Cal. Practice Guide:

Civil Procedure Before Trial (The Rutter Group 2014) ¶ 14:139.18, ("Should the court receive objections to the proposed settlement, it will consider and either sustain or overrule them at the fairness hearing.")

CONCLUSION: The settlement is entitled to a presumption of fairness.

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Is the settlement fair, adequate, and reasonable?

1.

Strength

of Plaintiff's case. "The most important factor is the strength of the case for plaintiffs on the merits, balanced against the amount offered in settlement." (Kullar v. Foot Locker Retail, Inc. (2008) 168 Cal.App.4th 116, 130.)

Counsel provided the following exposure analysis:

Claim

Maximum Exposure

Realistic Exposure

Unpaid Wages

\$307,253.12

\$49,160.50

Meal Periods

\$47,974.62

\$9,594.92

Rest Periods

\$2,591,776.98

\$155,506.62

Unreimbursed Expenses

\$377,312.50

\$33,958.13

Waiting Time Penalties

\$450,590.40

\$27,035.42

Inaccurate Wage Statements

\$616,950.00

\$37,017.00

PAGA Penalties

\$613,800.00

\$61,380.00

Total

\$5,005,657.62

\$373,652.59

(Yslas

Decl., ¶¶13-21.)

2. Risk, expense, complexity

and likely duration of further litigation.

Given the nature of the class claims, the case is likely to be expensive and lengthy to try. Procedural hurdles (e.g., motion practice and appeals) are also likely to prolong the litigation as well as any recovery by the class members.

3. Risk of

maintaining class action status through trial. Even if a class is certified, there is always a risk of decertification. (See *Weinstat v. Dentsply Intern., Inc.* (2010) 180 Cal.App.4th 1213, 1226 (“Our Supreme Court has recognized that trial courts should retain some flexibility in conducting class actions, which means, under suitable circumstances, entertaining successive motions on certification if the court subsequently discovers that the propriety of a class action is not appropriate.”).)

4. Amount offered in settlement. Counsel negotiated a settlement of \$285,000 that is approximately 5.7%-76.3% of the potential exposure, which is in the ballpark of reasonableness.

The settlement amount, after reduction by the maximum requested deductions, leaves \$144,750 to be divided among approximately 252 class members. Thus, the resulting payments will average \$574.40.

5. Extent of discovery completed and stage of

the proceedings. As indicated above, at the time of the settlement, Class Counsel had conducted sufficient discovery.

6. Experience and views of counsel. The settlement was negotiated and endorsed by Class Counsel who, as indicated above, is experienced in class action litigation, including wage and hour class actions.

7. Presence of a governmental participant. This factor is not applicable here.

8. Reaction of the class members to the

proposed settlement. The class members’ reactions will not be known until

they receive notice and are afforded an opportunity to object and or opt-out.
This factor becomes relevant during the fairness hearing.

CONCLUSION: The settlement can be preliminarily deemed “fair, adequate, and reasonable.”

Scope of the release

Releases of Claims: Effective on the date when Defendant fully funds the entire Gross Settlement Amount and all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (§5)

Release

by Participating Class Members: All Participating Class Members will release the Released Parties from (i) all claims, rights, demands, liabilities, and causes of action, alleged or reasonably could have been alleged, based on the facts alleged in the

Action, including, 1) failure to pay all wages (including minimum wages, other wages, and paid sick leave at the correct rates of pay and straight time wages); 2) failure to pay all overtime wages (including failure to pay at the regular rate of pay); 3) meal period violations and claims for meal period premium pay; 4) rest period violations and claims for rest period premium pay; 5) failure to pay all wages during employment and upon termination; 6) wage statement violations and failure to keep required records (Lab. Code § 1174); 7) failure to reimburse expenses, and 8) Unfair Competition Law violations. The enumeration of these specific claims shall neither enlarge nor narrow the scope of res judicata based on the claims that were asserted in the Action or could have been asserted in the Action based on the facts and circumstances alleged in the Complaint. The Released Class Claims are those that accrued during the Class Period. Except as set forth in Section 5.3 of this Agreement, Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (§5.2)

o “Operative Complaint” means the operative

First Amended Complaint filed on January 10, 2025 in the Action. (§1.31)

Release

by Aggrieved Employees: All Aggrieved Employees are deemed to release all claims for PAGA civil penalties that were alleged, or reasonably could have been alleged, based on the facts alleged the Action and in Plaintiff's November 6, 2024 PAGA Notices, including, 1) failure to pay all wages for all hours worked (including minimum wages, straight time wages, and overtime wages); 2) failure to pay all overtime wages (including failure to pay at the regular rate of pay); 3) meal period violations and claims for meal period premium pay; 4) rest period violations and claims for rest period premium pay; 5) failure to pay all earned wages two times per month; 6) failure to maintain accurate records of hours worked and meal periods taken or missed; 7) failure to pay all wages upon termination; 8) wage statement violations; 9) failure to reimburse expenses; and 9) failure to keep accurate and complete payroll records. The Released PAGA Claims are those that accrued during the PAGA Period. (§15.3)

o "PAGA Notice" means Plaintiff's November 6, 2024 letter to Defendant and the LWDA providing notice pursuant to Labor Code section 2699.3, subd. (a). (§11.33)

o Because future PAGA claims are subject to claim preclusion upon entry of the Judgment, Non-Participating Class Members who are Aggrieved Employees are deemed to release the claims identified in Paragraph 5.3 of this Agreement and are eligible for an Individual PAGA Payment. (§17.5.4)

"Released

Parties" means: Defendant and each of their insurers, predecessors, successors, assigns, employees, officers, directors, agents, and attorneys. (§11.42)

The

named Plaintiff will also provide a general release and CC § 1542 waiver. (§15.1-5.1.1)

May conditional class certification be granted?

1.

Standards

A detailed analysis of the elements required

for class certification is not required, but it is advisable to review each

element when a class is being conditionally certified (*Amchem Products, Inc. v. Winsor* (1997) 521 U.S. 620, 622-627.) The trial court can appropriately utilize a

different standard to determine the propriety of a settlement class as opposed to a litigation class certification.

Specifically, a lesser standard of scrutiny is used for settlement cases. (*Dunk* at 1807, fn. 19.)

Finally, the Court is under no “ironclad requirement” to conduct an evidentiary hearing to consider whether the prerequisites for class certification have been satisfied. (*Wershba* at 240.)

2.

Analysis

a.

Numerosity. There are approximately 252 class members. (*Yslas Decl.*, ¶10) This element is met.

b.

Ascertainability. The

proposed class is defined above. The

class definition is “precise, objective and presently ascertainable.” (*Sevidal v. Target Corp.* (2010) 189 Cal.App.4th 905, 919.) Class Members are identifiable through Defendant’s records. (*Yslas Decl.*, ¶10.)

c.

Community

of interest. “The community of interest requirement

involves three factors: ‘(1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.’” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

As to commonality, Plaintiff alleged that

Defendant maintained common employment policies and/or practices that

unlawfully deprived Class Members of wages, meal periods, rest periods, reimbursements for business expenses, accurate wage statements, timely payment of wages upon separation of employment, and timely production of employment records. These allegations present common factual and legal questions of, inter alia, whether Defendant applied the same scheduling, timekeeping, pay, meal period, rest period, reimbursement, and employment record production policies to all Class Members, whether these policies and practices resulted in Labor Code violations, whether Defendant's conduct was intentional, and whether Class Members are entitled to damages and/or penalties. (Memo ISO Prelim 7:6-17.)

As to typicality, Plaintiff alleged that she and Class Members were employed by the same Defendant and injured by Defendant's common wage and hour policies and practices, including Defendant's scheduling, timekeeping, pay, meal period, rest period, reimbursement, and employment record production policies. (Id. at 7:27-8:5.)

As to adequacy, Plaintiff represents that she is aware of the duties and risks of serving as class representative and has participated in the litigation. (Declaration of Cynthia Vanegas.)

d.
Adequacy
of class counsel. As indicated above, Class Counsel has shown experience in class action litigation, including wage and hour class actions.

e.
Superiority. Given the relatively small size of the individual claims, a class action appears to be superior to separate actions by the class members.

CONCLUSION: The class may be conditionally certified since the prerequisites of class certification have been satisfied.

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Is the notice proper?

a.
Content
of class notice. The proposed notice is attached to the Settlement

Agreement as Exhibit A. Its content appears to be acceptable. It includes information such as: a summary of the litigation; the nature of the settlement; the terms of the settlement agreement; attorney fees and costs; enhancement awards; the procedures and deadlines for participating in, opting out of, or objecting to, the settlement; the consequences of participating in, opting out of, or objecting to, the settlement; and the date, time, and place of the final approval hearing.

Defense

Counsel represented to Plaintiff's Counsel that the Class Members all speak English and therefore do not require any translation of the Class Notice. (Yslas Decl., ¶138.)

b.

Method

of class notice. Not

later than ten (10) days after the Court grants Preliminary Approval of the Settlement, Defendant will deliver the Class Data to the Administrator, in the form of a Microsoft Excel spreadsheet. (¶4.2) Using best efforts to perform as soon as possible, and in no event later than fourteen (14) days after receiving the Class Data, the Administrator will send to all Class Members identified in the Class Data, via first-class United States Postal Service ("USPS") mail, the Class Notice. Before mailing Class Notices, the Administrator will update Class Member addresses using the National Change of Address database. (¶7.4.2)

Not later than three (3) business days after the Administrator's receipt of any Class Notice returned by the USPS as undelivered, the Administrator will re-mail the Class Notice using any forwarding address provided by the USPS. If the USPS does not provide a forwarding address, the Administrator will conduct a Class Member Address Search, and re-mail the Class Notice to the most current address obtained. The Administrator has no obligation to make further attempts to locate or send Class Notice to Class Members whose Class Notice is returned by the USPS a second time. (¶7.4.3)

The deadlines for Class Members' written objections, challenges to workweeks and/or pay periods, and Requests for Exclusion will be extended an additional fourteen (14) days beyond the forty-five (45) days otherwise provided in the Class Notice for all Class Members whose notice is re-mailed. (¶7.4.4) Notice of Final Judgment will be

posted on the Settlement Administrator's website. (§7.8.1)

c.

Cost

of class notice. As indicated above, settlement administration costs are estimated to equal approximately \$6,250. Prior to the time of the final fairness hearing, the administrator must submit a declaration attesting to the total costs incurred and anticipated to be incurred to finalize the settlement for approval by the Court.

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Attorney fees and costs

CRC rule 3.769(b) states: "Any agreement, express or implied, that has been entered into with respect to the payment of attorney fees or the submission of an application for the approval of attorney fees must be set forth in full in any application for approval of the dismissal or settlement of an action that has been certified as a class action."

Ultimately, the award of attorney fees is made by the court at the fairness hearing, using the lodestar method with a multiplier, if appropriate. (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095-1096; Ramos v. Countrywide Home Loans, Inc. (2000) 82 Cal.App.4th 615, 625-626; Ketchum III v. Moses (2000) 24 Cal.4th 1122, 1132-1136.) In common fund cases, the Court may utilize the percentage method, cross-checked by the lodestar. (Laffitte v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) Despite any agreement by the parties to the contrary, "the court ha[s] an independent right and responsibility to review the attorney fee provision of the settlement agreement and award only so much as it determined reasonable." (Garabedian v. Los Angeles Cellular Telephone Company (2004) 118 Cal.App.4th 123, 128.)

The question of whether Class Counsel is entitled to \$95,000 (33 1/3%) in attorney fees will be addressed at the fairness hearing when class counsel brings a noticed motion for attorney fees. Class counsel must provide the court with billing information so that it can properly apply the lodestar method and must indicate what multiplier (if applicable) is being sought as to each counsel.

Class Counsel should also be prepared to justify the costs (capped at \$25,000) sought by detailing how they were incurred.

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Incentive Award to Class Representative

Class Counsel will seek a Service

Payment of \$7,500 to the named Plaintiff. In connection with the final fairness hearing, named Plaintiffs must submit declarations attesting to why they should be entitled to an enhancement award in the proposed amount. The named Plaintiffs must explain why they “should be compensated for the expense or risk she has incurred in conferring a benefit on other members of the class.”

(Clark v. American Residential Services LLC (2009) 175

Cal.App.4th 785, 806.) Trial courts

should not sanction enhancement awards of thousands of dollars with “nothing more than pro forma claims as to ‘countless’ hours expended, ‘potential stigma’ and ‘potential risk.’

Significantly more specificity, in the form of quantification of time and effort expended on the litigation, and in the form of reasoned explanation of financial or other risks incurred by the named plaintiffs, is required in order for the trial court to conclude that an enhancement was ‘necessary to induce [the named plaintiff] to participate in the suit’” (Id.

at 806-807, italics and ellipsis in original.)

The Court will decide the issue of the enhancement award at the time of final approval.